

Court No. - 39

Case :- WRIT - C No. - 22116 of 2025

Petitioner :- Nagendra Singh Gautam

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Ravi Sahu, Sanjay Kumar Rai

Counsel for Respondent :- C.S.C., Usha Kiran

Hon'ble Arindam Sinha, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Mr. Ravi Sahu, learned advocate appears on behalf of petitioner and submits, the electricity company has raised wrongful demand, in conflict with direction in order dated 19th May, 2025 of the Permanent Lok Adalat at Kanpur Nagar. He points out from the order, rate at which there can be recovery of cost for giving connection is Rs.35/sq.feet. Referring to estimated cost informed to his client at aggregate Rs.59,297/- he submits, it has been calculated at Rs.70/sq.feet. He seeks interference.

2. Mr. Raj Mohan Upadhyay, learned advocate, Additional Chief Standing Counsel appears on behalf of State and Ms. Usha Kiran, learned advocate appears on behalf of respondent nos. 2 and 3 (the electricity company). She submits, Electricity Supply Code, 2005 stood amended in January last, revising the cost from Rs.35/sq.feet to Rs.70/sq.feet. She submits, petitioner is to pay, failing which the connection cannot be given.

3. On query from Court regarding the estimate indicating mainly other charges of Rs.57,427.06/- she submits, it is the per square feet charge but, she will obtain instructions.

4. It appears from said order dated 19th May, 2025, the electricity company was represented in the Permanent Lok Adalat. On petitioner's writ petition for enforcement of the direction, we have no reason to interfere with the order. Adjournment is granted for the electricity company to either be heard or rectify their requisition on charges.

5. List on 23rd July, 2025 as fresh.

Order Date :- 14.7.2025

Mohini

(Arindam Sinha, J.)

(Dr. Y.K. Srivastava, J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 22116 of 2025

Nagendra Singh Gautam

.....Petitioner(s)

Versus

State Of Up And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Ravi Sahu, Sanjay Kumar Rai
Counsel for Respondent(s)	:	C.S.C., Usha Kiran

Court No. - 2

HON'BLE PRAKASH PADIA, J.
HON'BLE VIVEK SARAN, J.

1. Following order was passed by this Court on 14.07.2025:

"1. Mr. Ravi Sahu, learned advocate appears on behalf of petitioner and submits, the electricity company has raised wrongful demand, in conflict with direction in order dated 19th May, 2025 of the Permanent Lok Adalat at Kanpur Nagar. He points out from the order, rate at which there can be recovery of cost for giving connection is Rs.35/sq.feet. Referring to estimated cost informed to his client at aggregate Rs.59,297/- he submits, it has been calculated at Rs.70/sq.feet. He seeks interference.

2. Mr. Raj Mohan Upadhyay, learned advocate, Additional Chief Standing Counsel appears on behalf of State and Ms. Usha Kiran, learned advocate appears on behalf of respondent nos. 2 and 3 (the electricity company). She submits, Electricity Supply Code, 2005 stood amended in January last, revising the cost from Rs.35/sq.feet to Rs.70/sq.feet. She submits, petitioner is to pay, failing which the connection cannot be given.

3. On query from Court regarding the estimate indicating mainly other charges of Rs.57,427.06/- she submits, it is the per square feet charge but, she will obtain instructions.

4. It appears from said order dated 19th May, 2025, the electricity company was represented in the Permanent Lok Adalat. On petitioner's writ petition for enforcement of the direction, we have no reason to interfere with the order. Adjournment is granted for the electricity company to either be heard or rectify their requisition on charges.

5. List on 23rd July, 2025 as fresh."

2. Today when the matter is taken up, neither any document has been brought on record to demonstrate as to whether paragraph no.4 of the aforesaid order has been complied with nor any instruction has been provided by the learned counsel for the respondent-Electricity Department.

3. Put up this case as fresh on **04.11.2025** before appropriate Bench, on which date respondent nos.2 and 3 shall remain present before the Court.

October 30, 2025
Deepika

(Vivek Saran,J.) (Prakash Padia,J.)



2025:AHC:200084-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 22116 of 2025

Nagendra Singh Gautam

.....Petitioner(s)

Versus

State Of Up And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Ravi Sahu, Sanjay Kumar Rai
Counsel for Respondent(s)	: C.S.C., Usha Kiran

Court No. - 40

HON'BLE SARAL SRIVASTAVA, J.

HON'BLE SUDHANSHU CHAUHAN, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the respondent No.1 and Ms. Usha Kiran, learned counsel for the respondents No.2 & 3.
2. The petitioner being aggrieved by the estimate given by the respondents for installation of electricity connection to the petitioner at the rate of Rs.70/- per square ft. has approached this Court by filing the present writ petition.
3. Challenge has been laid on the ground that the petitioner has applied for electricity connection on 04.09.2024 but the electricity connection was not given to the petitioner. The petitioner approached the Permanent Lok Adalat, Kanpur Nagar by filing Case No.05 of 2025 in which a direction has been issued to the respondent-electricity department to grant the electricity connection on deposit by the petitioner as provided in Clause 4.9 (ब) (ट) of UP Electricity Code, 2005. In compliance of the said order, the electricity department has issued estimate which has been enclosed at page No.53 of the writ petition.
4. According to the petitioner, since he has applied for electricity connection on 04.09.20225 and on the date of submission of application, charge for electricity connection was Rs.35/- per

square ft., therefore, other charges calculated on the basis of Rs.70/- per square ft. on the basis of amendment which has been introduced on 27.02.2025 after filing of petitioner's application is erroneous as the petitioner is liable to pay for charges for electricity connection applicable on the date he submitted the application.

5. It is contended that the petitioner had been granted electricity connection expeditiously after submission of the application, therefore, the petitioner was liable to pay Rs.35/- per square ft. and thus, the estimate given by the respondents is arbitrary.

6. *Per contra*, learned counsel for the respondents would contend that in the instant case estimate has been rightly calculated and there is no illegality in the order.

7. It appears that after filing of the writ petition, the Executive Engineer, Kesko passed an order dated 31.10.2025 directing the petitioner to deposit the estimate uploaded on the portal immediately so that the electricity connection may be installed at the petitioner's house.

8. The grievance of the petitioner is that fact whether he is liable to pay at the rate of Rs.35/- per square ft. or Rs.70/- per square ft. has not yet been considered and adjudicated. The estimate has been issued ex parte without any information to the petitioner. The petitioner disputes the aforesaid estimate on the ground that he is liable to pay the charge applicable on the date he submitted the application for electricity connection i.e. on 04.09.2025.

9. In such view of the fact, we deem it appropriate to **dispose off** the writ petition permitting the petitioner to file a detailed representation ventilating all his grievances before the respondent No.3-Managing Director, Electricity Supply Company Limited, Civil Lines, Kanpur Nagar against the estimate given by the respondents to the petitioner within a period of two weeks from today. On submitting such representation, the respondent No.3 shall consider and decide the same strictly in accordance with law after giving due notice and opportunity of hearing to the petitioner within a period of two weeks from the date of receiving

the representation. In case the respondent No.3 finds the grievance of the petitioner genuine, he shall modify the estimate accordingly which shall be deposited by the petitioner expeditiously and the electricity connection shall be installed at the petitioner's house without any delay after deposit of the said amount. If in case the respondent No.3 finds that the grievance of the petitioner lacks merit, he shall pass a reasoned and speaking order within the aforesaid period.

**November 12,
2025**

SS

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)